

25TRCV01762 25TRCV01762

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-06-26

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Case Number: 25TRCV01762 Hearing Date: June 26, 2026 Dept: E

Superior Court
of California

County of Los
Angeles

Southwest
District

Torrance Dept. E

LEONARD
STEVE HARDAWAY,

Plaintiff,

Case No.:

25TRCV01762

vs.

[Tentative]
Granted

ROXANE

BARRIENTOS CAMEY; AGUIDO MODESTO; CITY OF HAWTHORNE; CITY OF MANHATTAN BEACH;
CITY OF REDONDO BEACH; AND DOES 1 through 50

Defendants.

Hearing

Date: June
29, 2026

Moving Parties: Defendant Modesto Guido

Responding Party: Plaintiff Leonard Steve Hardaway

HEARING: Motion to Set Aside

Default

The Court considered the moving and
opposition papers.

RULING

The Court grants the Motion to Set Aside
Default.

BACKGROUND

On May

30, 2025, Plaintiff Leonard Steve Hardaway filed the Complaint against
Defendants Roxane Barrientos Camey, Aguido Modesto, City of Hawthorne, and City
of Redondo Beach, alleging causes of action for motor vehicle negligence.

On September 9, 2025,

Defendant City of Redondo Beach filed the Cross-Complaint against
Cross-Defendants Roxane Barrientos Camey, Aguido Modesto, and Kevon Anderson.

On March 2, 2026,

Defendant Modesto Guido entered default on the Complaint.

On March 13, 2026,

Defendant Modesto Guido entered default on the Cross-Complaint.

On April 23, 2026,

Defendant filed the Motion to Set Aside Entry of Default.

On April 30, 2026,
Plaintiff filed the Opposition.

On May 8, 2026,
Defendant refiled the instant motion.

No Reply has been filed.

LEGAL STANDARD

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect... [The application] shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc., § 473 subd. (b).)

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Although a trial court has the discretion to vacate the entry of a default or subsequent judgment, this discretion may be exercised only after the party seeking relief has shown that there is a proper ground for relief and that the party has raised that ground in a procedurally proper manner, within any applicable time limits.” (Cruz v. Fagor America, Inc. (2007) 146 Cal.App.4th 488, 495.) “The defendant must ... demonstrate a satisfactory excuse for not responding to the original action in a timely manner.” (Id. at 504.) Moving parties have the initial burden to prove excusable neglect by a preponderance of competent evidence. (Kendall v. Barker (1988) 197 Cal.App.3d 619, 624.)

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Code Civ. Proc., § 473 subd. (d) provides in relevant part that “[t]he court may, upon motion of the injured party... set aside any void judgment or order.” (Code Civ. Proc., § 473 subd. (d).)

Code Civ. Proc., section 473.5 permits the Court to set aside a default and default judgment when the service of a summons

has not resulted in actual notice to a party in time to defend the action. Code Civ. Proc., section 473.5 requires the motion to be accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect. (Code Civ. Proc., § 473.5.) The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of the following:

1)

1) two years after entry of a default judgment against him or her; or

2) 180 days after service on him or her of a written notice that the default or default judgment has been entered.

(Code Civ. Proc., § 473.5.)

DISCUSSION

Defendant requests

the Court set aside the default entered against him on March 13, 2026.

Defendant argues that failure to file a responsive pleading was caused by mistake as Defendant's counsel was in talks with Plaintiff regarding the circumstances of the case and possible dismissal when the default occurred.

Consequently, the Court finds that the default was caused by Defendant's excusable neglect. However, Defendant's motion is focused on Plaintiff's Complaint, yet the March 13, 2026, default was to Defendant Redondo Beach's Cross-Complaint. Thus, it is unclear which default Defendant is seeking relief from. Either way, Defendant is entitled to relief as to the March 13, 2026, Default.

Therefore, the

Court grants the Motion to Set Aside Default.